

PROFESSIONAL LIABILITY ERRORS & OMISSIONS INSURANCE DECLARATIONS

DEFENSE WITHIN THE LIMITS ACKNOWLEDGMENT

THIS IS A "CLAIMS MADE" POLICY AND IS CONSIDERED A "DEFENSE COST WITHIN COVERAGE LIMITS" POLICY. LIMITS OF LIABILITY MAY BE REDUCED BY UP TO 50% BY PAYMENT OF CLAIM EXPENSES AND LEGAL DEFENSE COSTS.

As it pertains to this policy:

- **Claim Expenses and legal defense costs charged against the Limits of Liability shall not exceed 50% of such limits; and**
- **We shall assume any Claim Expenses and legal defense costs over the amount specified above but only until such time as the Limit of Liability is exhausted.**

APPLICANT SIGNATURE: _____ DATE SIGNED: _____

APPLICANT NORTHVALE SERVICE

By signature on this document, I apply to the Company for a Policy of insurance on the basis of the statements and information presented on this application. I agree that such policy may be null and void if such information is false or misleading in any way that would affect the premium charged or the eligibility of the risk.

I understand the Company routinely requests consumer reports on applicants. I understand the consumer reports will be used as an underwriting tool in order to establish my eligibility for insurance coverage.

Fraud Warning: Any person who knowingly and with intent to defraud an Granite Row or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the stated value of the claim for each such violation.

APPLICANT SIGNATURE: _____ DATE SIGNED: _____



Thank you for your business. We are here for you!

HOW TO SUBMIT A CLAIM AND REPORT A LOSS:

Call (First Notice of Loss): 855-680-2440

Website/ Portal: <https://coterieinsurance.com/>

Policyholders experiencing a possible claims occurrence are urged to report the claim as soon as reasonably possible. Please be advised that claims are serviced by Coterie Insurance on behalf of Providence Washington Granite Row as the underwriter and Coterie Insurance Agency LLC, as the agent.

Important information to have available when submitting a claim:

1. Policy Number.
2. Named Insured & their contact information.
3. Date of loss.
4. Description of event.
5. Identify that you are a Coterie policy holder to make sure we get you the right resources as quickly as possible.

Special Procedures:

- If you or your company is served with a lawsuit, report the pending litigation immediately.
- al information about your insurance policies or coverage other than the name of your Granite Row or the issuing agent.
- Don't admit responsibility for accidents, injury, or property damage.
- Don't make voluntary payments to other parties for injuries o first consulting authorized or Coterie Insurance s of Coterie Insurance, Providence Washington Granite Row ASHCROFT
- Don't give copies of do other than authorized r s of Coterie Insurance, Providence Washington Granite Row or Coterie Insurance ASHCROFT

Providence Washin n Granite Row
One World Trade Center, ^{62kw} F Monroe, NY 10950
(915) 888-3896

INSURANCE POLICY

Coverage afforded by this policy is provided by the company (insurer) named in the Declarations.

In Witness Whereof, the company has caused this policy to be executed and attested, but this policy shall not be valid unless signed by a duly authorized representative of the company.



Steve Dresner
President



Nicole Crowley
Secretary

Providence Washington Granite Row

One W

62kw

Monroe, NY 10950

PROFESSIONAL LIABILITY ERRORS & OMISSIONS INSURANCE DECLARATIONS

The following notices are provided in accordance with New York Law:

THIS IS A "CLAIMS MADE" POLICY AND IS CONSIDERED A "DEFENSE COST WITHIN COVERAGE LIMITS" POLICY. LIMITS OF LIABILITY MAY BE REDUCED BY UP TO 50% BY PAYMENT OF CLAIM EXPENSES AND LEGAL DEFENSE COSTS.

With respect to this coverage, the Policy does not apply to Claims arising out of incidents, occurrences, or alleged wrongful acts which took place prior to the applicable Retroactive Date. Such claims-made coverage applies only to those Claims actually made against the Insured while the Policy remains in effect.

All coverage provided on a claims-made basis under this Policy ceases upon termination of the Policy, except coverage for Claims reported during the sixty (60) day automatic extended reporting period or during the Optional Extended Reporting Period, if purchased.

The nature of claims-made coverage is such that during the first several years of continuing claims-made coverage, claims-made premiums are comparatively lower than occurrence coverage premiums. An Insured can expect substantial annual premium increases, independent of overall rate level increases,

BLUE FORK AUTOMOTIVE SERVICES

The following extended reporting periods are available upon termination of coverage:

- 60 Day automatic extended reporting period – no additional premium charge
- Up to 3 years Optional Extended Reporting Period – 200% of policy premium
- 4 years Optional Extended Reporting Period – 250% of policy premium
- 5 years Optional Extended Reporting Period – 275% of policy premium
- 6 years Optional Extended Reporting Period – 300% of policy premium
- More than 6 years Optional Extended Reporting Period – 325% of policy premium

Potential coverage gaps may arise upon expiration of the extended reporting period.

Please read your policy.

NAMED INSURED ASHCROFT SERVICE GROUP

IRONVALE AUTOMOTIVE SERVICES

DBA / OPERATING NAME

BEACON

MAILING ADDRESS

9187 Pawpuc Ywtij 0 , Caxgdn, WF 41044

9187 Pawpuc Ywtij 0 , Caxgdn, WF 41044

ONEONTA

LIBERTY

gerald.barrington@example.com

WARWICK

ONEONTA

Oneonta

gerald.barrington@example.com

BEACON

WARWICK

(374) 568-3456

Life, Career, or Executive Coach Services

CEDARLINE BUILDERS

POLICY NUMBER

Providence Washington Granite Row

CEP-82195597-47

POLICY PERIOD

Start Date: 08/06/2026

End Date: 08/06/2027

RETROACTIVE DATE:

08/06/2026

**Policy effective period from 12:01 A.M. of start date (or time of purchase if purchased on the same day) to 12:01 A.M. of end date (standard time at the business address shown above). Notwithstanding the foregoing, no insurance applies prior to the time of Application on the first day of the Policy Period.*

NOTICE (IF APPLICABLE):**PREMIUM****Policy Premium** \$840.00**Terrorism Premium** \$**TOTAL PREMIUM** \$840.00**AUDIT PERIOD:** Annual

THESE DECLARATIONS, TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE FORM(S), AND ANY ENDORSEMENT(S), COMPLETE THE ABOVE NUMBERED POLICY.

Professional Liability

Limits of Insurance

PROFESSIONAL LIABILITY	LIMITS OF INSURANCE
Each Claim:	\$1,000,000
Aggregate for all Claims:	\$3,000,000

Deductible

PROFESSIONAL LIABILITY DEDUCTIBLE	DEDUCTIBLE AMOUNT
Each Claim:	\$1,500

Forms Attachments

Description	Form Number
STATE OF NEW YORK - NOTICE TO INSURED	CTPL NY PLACK 10 24 G
HOW TO SUBMIT A CLAIM (PROVIDENCE WASHINGTON)	COTERIE CW CLAIM 12 23 P
CARRIER SIGNATURE PAGE (PROVIDENCE WASHINGTON)	COTERIE CW SIG 02 24 P
DECLARATION PAGE	CTPL NY PL 10 24 G
U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS	COTERIE CW OFAC 04 24 G
POLICY FEE NOTICE	COTERIE CW PFN 03 24
COVERAGE FORM	ASHCROFT MECHANICAL
WAR AND NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT - STATE OF NEW YORK	CTPL NY WAREXCL 01 24 G
CYBER INCIDENTS EXCLUSION ENDORSEMENT	CTPL CW CYBER 01 24 G
LIFE/CAREER/CLEARWATER FABRICATION ENDORSEME	CTPL CW EXECCOACH 01 24 G

Policy Fee Notice

The following fees apply to this policy:

Type of Fee	Amount
Policy Fee*	\$50
Installment Fee	\$7
Endorsement/Service Fee	\$10
Late Fee	\$10
Non-Sufficient Funds Fee	\$25
Reinstatement Fee	\$25

*Policy fee does not apply in MD, ME, NY, RI, SC, WA, WV.
Installment fee is \$3 in FL and \$5 in WV.
LA is exempt from installment fee on first payment.
NSF fee does not apply in FL, SC.
Late fee does not apply in WV.

PROFESSIONAL LIABILITY ERRORS AND OMISSIONS INSURANCE

DEFENSE WITHIN THE LIMITS DISCLOSURE

THIS IS A "CLAIMS MADE" POLICY AND IS CONSIDERED A "DEFENSE COST WITHIN COVERAGE LIMITS" POLICY. LIMITS OF LIABILITY MAY BE REDUCED BY UP TO 50% BY PAYMENT OF CLAIM EXPENSES AND LEGAL DEFENSE COSTS.

As it pertains to this policy:

- **Claim Expenses and legal defense costs charged against the Limits of Liability shall not exceed 50% of such limits; and**
- **We shall assume any Claim Expenses and legal defense costs over the amount specified above but only until such time as the Limit of Liability is exhausted.**

This Professional Liability policy is designed to offer coverage for the risks entities face in performing their **Professional Services**. We urge **You** to read this Policy carefully so **You** understand the insurance that **You** have purchased, and the full extent of **Your** and **Our** rights and duties under this Policy. Please note that all words and phrases that appear in bold-type (except headings) have special meaning and are defined in the Definitions section of this Policy. Coverage for all **Claims** is subject to the entire terms and conditions of the policy.

Coverage for Claims Made Against You

You have purchased insurance that provides coverage for **Claims** made against **You**. **We** will pay **Damages** on **Your** behalf for any **Claim** that falls within the Insuring Agreement and within all of the terms and conditions outlined in the policy. Covered **Claims** are for **Your Wrongful Acts** in providing or failing to provide **Professional Services**. To determine who is an **Insured** please refer to the Definitions and Spousal Partner section of the policy. Additionally, for coverage to apply, **You** must comply with all **Your** obligations as outlined in the Notice of **Claims**, Notice of Potential **Claims**, and the rest of the Policy. The most **We** will pay is outlined in the Limits of Liability Section, and items **We** will not pay are outlined in the Exclusions section. **You** are responsible for payments as outlined in the Deductible section.

Claims-Made Policies

Wherever "claims-made" is referenced in the Policy, the following shall apply: **Claims** first made against the **Insured** shall be reported to **Us** as soon as reasonably possible during the **Policy Period**, during the continuous renewal thereof, **Automatic Extended Reporting Period** or the **Optional Extended Reporting Period**.

PART I – INSURANCE PROVIDED

In consideration of the premium charged and in reliance on the statements made and information provided to **Us**, including but not limited to the statements made and information provided in and with the **Application**, subject to the Limits of Liability, the Deductible, and all of the terms, conditions, limitations and exclusions of this Policy, **We** and **You** agree as follows:

A. INSURING AGREEMENT

We shall pay on **Your** behalf **Damages** and **Claim Expenses** in excess of the Deductible resulting from any covered **Claim** that is first made against **You** during the **Policy Period** and reported to **Us** pursuant to the terms of the Policy for **Wrongful Acts** committed on or after the **Retroactive Date**.

We shall also pay on **Your** behalf all **Supplemental Payments** in connection with any covered **Claim** that is first made against **You** during the **Policy Period** and reported to **Us** pursuant to the terms of the Policy for **Wrongful Acts** committed on or after the **Retroactive Date**. No Deductible shall apply to **Supplemental Payments**.

B. DEFENSE

1. **We** shall have the right and the duty to defend any covered **Claim**, even if such **Claim** is groundless, false, or fraudulent.
2. **We** shall have the right to appoint defense counsel upon being notified of such **Claim**.
3. Notwithstanding paragraph 2., **We** shall have no obligation to pay **Claim Expenses** until **You** have satisfied the applicable Deductible.
4. **Our** duty to defend shall terminate upon the exhaustion of the Limit of Liability as set forth in the Declarations.

C. SETTLEMENT

1. **We** shall have the right to solicit and negotiate settlement of any **Claim**.
2. **We** shall not, however, enter into a settlement without **Your** prior consent, which consent shall not be unreasonably withheld.
3. If **You** shall refuse to consent to any settlement recommended by **Us**, **Our** liability for such **Claim** shall not exceed the amount for which such **Claim** could have been settled plus **Claim Expenses** incurred up to the date of such refusal.

PART II - CLAIMS

A. NOTICE OF CLAIMS

1. As a condition precedent to any coverage under this Policy, **You** shall give written notice to **Us** of any **Claim** as soon as practicable, but in all events no later than:
 - a. the end of the **Policy Period** (or any purchased **Optional Extended Reporting Period**); or
 - b. 60 days after the end of the **Policy Period** (or any purchased **Optional Extended Reporting Period**) so long as such **Claim** is made within the last 60 days of such **Policy Period** (or any purchased **Optional Extended Reporting Period**).

However, failure to give notice as described above will not invalidate a **Claim** if **You** or the claimant could not have reasonably provided notice within the prescribed timeframe.

2. Such notice shall be sent to **Us** at the address set forth in the Declarations.
3. Such notice shall include any and all documents related to such **Claim**, including every demand, notice, summons, or other applicable information received by **You** or by **Your** representative.
4. Failure to give notice to **Us** as soon as practicable, shall not invalidate any **Claim** made by the **Insured**, injured person or any other claimant, unless the failure to provide such timely notice has prejudiced **Us**. However, no **Claim** made by the **Insured**, injured person or other claimant will be invalidated if it shall be shown not reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

Notice given by or on behalf of the **Insured**, or written notice by or on behalf of the injured party or any other claimant, to a _____ State of New York, with particulars sufficient to identify the **Insured** CLEARWATER SERVICE GROUP

B. NOTICE OF POTENTIAL CLAIMS

If **You** first become aware during the **Policy Period** of any **Wrongful Act** that might be reasonably likely to give rise to a covered **Claim**, **You** may give written notice to **Us** of such potential **Claim** during the **Policy Period**. Such notice must include to the fullest extent possible:

1. the identity of the potential claimant;
2. the identity of the person(s) who allegedly committed the **Wrongful Act**;
3. the date of the alleged **Wrongful Act**;
4. specific details of the alleged **Wrongful Act**; and
5. any written notice from the potential claimant describing the **Wrongful Act**.

If such notice is accepted as a "potential **Claim**," then any actual **Claim** that is subsequently made shall be deemed to have been first made on the date such "potential **Claim**" was first reported to **Us**.

Provided, however, **You** may not report "potential **Claims**" during any purchased **Optional Extended Reporting Period**.

PART III – EXCLUSIONS.

This Policy does not apply to and **We** shall have no obligation to pay any **Damages, Claim Expenses** or **Supplemental Payments** for any **Claim**:

- A. based upon or arising out of any actual or alleged fraud, dishonesty, criminal conduct, or any knowingly wrongful, malicious, or intentional acts or omissions.
- B. based upon or arising out of any actual or alleged gaining of any profit or advantage to which **You** were not legally entitled.
- C. based upon or arising out of any actual or alleged wrongful termination, retaliation, or discrimination against or harassment of any past, present, future, or potential **Employee**, including but not limited to any violations of federal, state, or local statutory or common law.
- D. based upon or arising out of any actual or alleged **Wrongful Act** that:
 1. was committed prior to the **Retroactive Date**;
 2. has been the subject of any notice given under any other policy of which this Policy is a renewal or replacement; or
 3. **You** had knowledge of prior to the **Policy Period** and had a reasonable basis to believe that such **Wrongful Act** could give rise to a **Claim**; provided, however, that if this Policy is a renewal or replacement of a previous policy issued by **Us** providing materially identical coverage, the **Policy Period** referred to in this paragraph will be deemed to refer to the inception date of the first such policy issued by **Us**.

- E. brought by or on behalf of any federal, state, or local government agency or professional or trade licensing **Organization**; provided, however, this exclusion shall not apply to **Claims** brought in their capacity as a client receiving **Your Professional Services**.
- F. brought by or on behalf of one **Insured** against another **Insured**.
- G. brought by or on behalf of any person or entity maintaining **Effective Control** of **You**.
- H. based upon or arising out of any actual or alleged violation of the following laws, including any similar provisions of any federal, state, or local statutory or common law:
 - 1. the Securities Act of 1933 (as amended);
 - 2. the Securities Exchange Act of 1934 (as amended);
 - 3. any state blue sky or securities laws (as amended);
 - 4. the Racketeer Influenced and Corrupt Organizations Act, 18 U.S.C. § 1961 et seq. (as amended);
 - 5. the Employee Retirement Income Security Act of 1974 (as amended);including any rules or regulations promulgated thereunder.
- I. based upon or arising out of any actual or alleged obligation under any Workers' Compensation, Unemployment Compensation, Employers Liability or Disability Benefit Law, including any similar provisions of any federal, state, or local statutory or common law.
- J. based upon or arising out of any actual or alleged liability of others that **You** assume under any contract or agreement unless such liability would have attached in the absence of such contract or agreement.
- K. based upon or arising out of any actual or alleged **Bodily Injury** or **Property Damage**.
- L. based upon or arising out of any actual, alleged or threatened discharge, dispersal, release, or escape of **Pollutants**, including any direction or request to test for, monitor, clean up, remove, mitigate, contain, treat, detoxify, or neutralize **Pollutants**.
- M. based upon or arising out of any actual or alleged infringement of any copyright, trademark, trade dress, trade name, service mark, service name, title, slogan, or patent or theft of trade secret.

- N. based upon or arising out of any actual or alleged false or deceptive advertising of **Your** goods or services or misrepresentation in advertising of **Your** goods or services, including but not limited to any wrongful description of prices of **Your** goods or services or the quality or performance of **Your** goods or services.
- O. based upon or arising out of any actual or alleged breach of contract or breach of any implied or express warranty or guarantee; provided, however, this Exclusion shall not apply to:
 - 1. any obligation **You** have to perform **Your Professional Services** with reasonable skill or care; or
 - 2. any liability **You** would have had in absence of such contract, warranty, or guarantee.
- P. based upon or arising out of any actual or alleged violation of any federal, state, or local statutes, ordinances, or regulations, regarding or relating to unsolicited telemarketing, solicitations, emails, faxes, or any other communications of any type or nature, including but not limited to any "anti-spam" and "do-not-call" statutes, ordinances, or regulations.
- Q. based upon or arising out of any actual or alleged failure to procure or maintain adequate insurance or bonds.
- R. based upon or arising out of any actual or alleged failure to protect any non-public, personally identifiable information in **Your** care, custody, or control.
- S. based upon or arising out of any actual or alleged actuarial services, medical or nursing services, insurance agent/broker services, legal services or services as an architect or engineer.
- T. based on actual or alleged discrimination or actual or alleged sexual harassment by the **Insured**.

PART IV – LIMITS OF LIABILITY

A. LIMIT OF LIABILITY

- 1. Regardless of the number of **Claims** made during the **Policy Period** (or applicable Extended Reporting Period), the maximum that **We** shall be liable to pay for all covered **Damages, Claim Expenses**, and **Supplemental Payments** shall be as follows:
 - a. The amount set forth in the Declarations as "Each **Claim**" shall be the maximum amount for each covered **Claim**.
 - b. The amount set forth in the Declarations as "Aggregate for all **Claims**" is the maximum amount for all **Claims** combined.

- c. Notwithstanding a. and b. above, **Our** liability for **Supplemental Payments** shall not exceed \$250 per day for each **Insured** up to \$5,000 per **Claim**, which amounts shall reduce the amounts described in a. and b. above.

2. Transfer of Duties When a Limit of Liability is Used Up

- a. If **We** conclude that, based on **Wrongful Acts**, occurrences, **Claims** or suits which have been reported to **Us** and to which this insurance may apply, the Limit of Liability shown in the Declarations is likely to be used up in the payment of judgments or settlements, **We** will notify the **Named Insured**, in writing, to that effect.

- b. When the Limit of Liability has actually been used up in the payment of judgments or settlements:

- (1) **We** will notify the **Named Insured**, in writing, as soon as practicable, that:

- (a) the Limit of Liability has actually been used up; and
(b) **Our** duty to defend **Claims** or suits seeking **Damages** subject to that Limit has also ended.

- (2) **We** will initiate, and cooperate in, the transfer of control, to any appropriate **Insured**, of all **Claims** and suits seeking **Damages** which are subject to that Limit and which are reported to **Us** before that Limit is used up. That **Insured** must cooperate in the transfer of control of said **Claims** and suits.

We agree to take such steps, as we deem appropriate, to avoid a default in, or continue the defense

is completed, provided the appropriate

Insured ASHCROFT SERVICE GROUP

We will take no action whatsoever with respect to any **Claim** or suit seeking **Damages** that would have been subject to the Limit of Liability, had it not been used up, if the **Claim** or suit is reported to **Us** after the Limit of Liability has been used up.

- (3) **You**, and any other **Insured** involved in a **Claim** or suit seeking **Damages** subject to the Limit of Liability, must arrange for the defense of such **Claim** or suit within such time period as agreed to between the appropriate **Insured** and **Us**. Absent any such agreement, arrangements for the defense of such **Claim** or suit must be made as soon as practicable.
- c. The **Named Insured** will reimburse **Us** for expenses **We** incur in taking those steps **We** deem appropriate in accordance with paragraph 2.b. above. The **Named Insured's** duty to reimburse **Us** will begin on:
- (1) The date on which the Limit of Liability is used up, if **We** sent notice in accordance with paragraph 2.a. above; or
- (2) The date on which **We** sent notice in accordance with paragraph 2.b. above, if **We** did not send notice in accordance with paragraph 2.a. above.

Transfer of Duties When a Limit of Liability is Used Up

- d. The exhaustion of the Limit of Liability by the payments of judgments or settlements, and the resulting end of **Our** duty to defend, will not be affected by **Our** failure to comply with any of the provisions of this condition.

3. Pay on Your Behalf

Any reference to "**We** will reimburse **You**" in the Policy, or in any endorsement attached to the Policy, is replaced by "**We** will pay on **Your** behalf."

B. DEDUCTIBLE

1. **We** shall not be responsible for payment of **Damages** until the Deductible amount has been satisfied.
2. **We** may at **Our** discretion advance payment of **Damages** within the Deductible amount on **Your** behalf, but **You** shall reimburse **Us** for any such amounts as soon as **We** request such reimbursement.
3. No Deductible amount shall apply to **Supplemental Payments**.

C. RELATED CLAIMS

For purposes of the applicable Deductible and Limit of Liability, all **Claims** based upon or arising out of continuous, repeated, related, or interrelated **Wrongful Acts** shall be considered a single **Claim** first made against **You** in the **Policy Period** the first such **Claim** was made.

D. OUR MAXIMUM PAYMENT - AUTOMATIC EXTENDED REPORTING PERIOD

The aggregate Limit of Liability available during the **Automatic Extended Reporting Period** shall be equal to the amount of coverage remaining under the Policy's aggregate Limit of Liability set forth in the Declarations. All other terms and provisions of this Policy shall continue to apply during the **Automatic Extended Reporting Period**.

E. OUR MAXIMUM PAYMENT - OPTIONAL EXTENDED REPORTING PERIOD

1. If **PART V. GENERAL MATTERS, R. EXCEPTIONS TO MINIMUM STATUTORY REQUIREMENTS**, of this Coverage Form applies to the **Insured**, the Limit of Liability available for the **Optional Extended Reporting Period** shall be equal to the amount of coverage remaining under the Limit of Liability set forth in the Declarations.
2. If **PART V. GENERAL MATTERS, R. EXCEPTIONS TO MINIMUM STATUTORY REQUIREMENTS**, of this Coverage Form does not apply to the **Insured**:

if as of the effective date of **Termination of Coverage**, the **Claims-Made Relationship** has been in effect without interruption for at least three (3) years, the aggregate Limit of Liability for the **Optional Extended Reporting Period** shall be equal to one hundred

percent (100%) of the aggregate Limit of Liability in effect immediately prior to **Termination of Coverage**.

- b. if as of the effective date of **Termination of Coverage**, the **Claims-Made Relationship** has been in effect without interruption for less than three (3) years, the aggregate Limit of Liability for the **Optional Extended Reporting Period** shall be the greater of:

- (1) the amount of coverage remaining under the Limit of Liability set forth in the Declarations at the time of the subject **Claim** is made; or
- (2) fifty percent (50%) of the Limit of Liability set forth in the Declarations.

Notwithstanding the above, where **Termination of Coverage** is due only to a decrease in the aggregate Limit of Liability, the Limit of Liability for any purchased **Optional Extended Reporting Period** (if **We** are obligated to offer an **Optional Extended Reporting Period** for such reason) shall be no greater than the amount of such decrease. In such instance, the Limit of Liability provided for the **Optional Extended Reporting Period** shall replace, and shall not be in addition to, the Limit of Liability provided for the **Automatic Extended Reporting Period**.

PART V – GENERAL MATTERS

A. ESTATES, HEIRS, LEGAL REPRESENTATIVES, & SPOUSES

This Policy shall apply to **Claims** brought against:

1. the heirs ssignees, and legal representatives of any
Insured TALLGRASS WORKS
2. the legal spouse of any **Insured**;

but only:

1. for the **Wrongful Acts** of such **Insured**; or
2. in connection with their ownership interest in property which the claimant seeks as recovery for actual or alleged **Wrongful Acts** of such **Insured**.

B. INSURED DUTY TO COOPERATE

You shall have the duty to cooperate with **Us** in the defense, investigation, and settlement of any **Claim**, including but not limited to:

1. upon request, submit to examination and interrogation under oath by **Our** representative;
2. attend hearings, depositions and trials as requested by **Us**;
3. assist in securing and giving evidence and obtaining the attendance of witnesses;

4. provide written statements to **Our** representative and meet with such representative for the purpose of investigation and/or defense; and
5. provide all documents **We** may reasonably require.

C. INSURED OBLIGATION NOT TO INCUR EXPENSE OR ADMIT LIABILITY

You shall not, except at **Your** own cost, make any payment, incur any expense, admit any liability, settle any **Claim**, or assume any obligation without **Our** prior consent.

D. ACTION AGAINST THE INSURER

No action shall be taken against **Us** unless there shall have been full compliance by **You** with all the terms and conditions of this Policy. If **We** do not pay a judgment covered under this Policy within thirty (30) days from the service of notice of the judgment upon **You** or **Your** attorney and **Us**, then an action may be brought against **Us** for the amount of the judgment, not exceeding the amount of the applicable the Limit of Liability, except during a stay or limited stay of execution against **Us** on such judgment. No person or organization shall have any right under this Policy to join **Us** as a party to any **Claim** against **You** nor shall **We** be impleaded **You** or **Your** legal representatives in any such **Claim**.

With respect to a claim arising out of death or personal injury of any person, if **We** deny coverage or do not admit liability based upon the failure to provide timely notice, then the injured person or other claimant may maintain an action directly against **Us**, provided the sole question is whether the denial of coverage or non-admission of liability is based on the failure to provide timely notice. However, the injured person or claimant may not bring an action if within sixty (60) days after **We** deny coverage or do not admit liability, **We** or an
ights to the parties under the Policy, and names the injured

VANTAGE HOLDINGS

E. OTHER INSURANCE

This Policy shall be excess insurance over any other valid and collectible insurance available to **You**, whether such other insurance is stated to be primary, contributory, excess, contingent, or otherwise, unless such other insurance is written only as a specific excess insurance over the Limit of Liability provided in this Policy.

F. SUBROGATION

1. In the event of any payment by **Us** under this Policy, **We** shall be subrogated to all of **Your** rights of recovery to such payment.
2. **You** shall do everything that may be necessary to secure and preserve such subrogation rights, including but not limited to the execution of any documents necessary to allow **Us** to bring suit in **Your** name.
3. **You** shall do nothing to prejudice such subrogation rights without first obtaining **Our** written consent.

4. Any recovery shall first be paid to **Us** up to the amount of any **Damages, Claim Expenses** or **Supplemental Payments** that **We** have paid. Any remaining amounts shall be paid to **You**.
5. Notwithstanding the above, no subrogation shall be had against any **Insured**.

G. ALTERATION AND ASSIGNMENT

No change in, modification, or assignment of interest under this Policy shall be effective unless made by written endorsement to this Policy signed by **Our** authorized representative.

H. REPRESENTATIONS

As a condition precedent of **Our** obligations under this Policy, **You** represent that:

1. the statements and representations made by **You** in the **Application** are true and are the basis of the Policy and are to be considered as incorporated into and constituting a part of this Policy;
2. the statements and representations made by **You** in the **Application** shall be deemed material to the acceptance of the risk assumed by **Us** under the Policy;
3. this Policy is issued in reliance upon the truth of the statements and representations made by **You** in the **Application**; and
4. in the event the **Application** contains material misrepresentations which affect the acceptance of the risk assumed by **Us** under this Policy, this Policy shall be void ab initio. No misrepresentation shall be deemed material unless knowledge by **Us** of the facts misrepresented would have led **Us** to refuse to offer coverage.

I. BANKRUPTCY OR INSOLVENCY

Bankruptcy or insolvency of **You** or **Your** estate shall not relieve **Us** of any of **Our** obligations under this Policy, nor shall it deprive **Us** of **Our** rights and defenses under this Policy.

J. TERRITORY

This Policy shall apply to **Wrongful Acts** committed anywhere in the world, provided that any action, arbitration, or other proceeding for, in relation to, or arising from the **Claim** is brought within the United States, its territories or possessions, or Canada.

CEDARLINE BUILDERS

If any **Insured** shall commit fraud in proffering any **Claim** or regarding the amount or otherwise, this Insurance shall become void as to such **Insured** from the date such fraudulent **Claim** is proffered where such misrepresentation would have led to a refusal by the insurer to enter the contract.

L. NAMED INSURED RESPONSIBILITIES

It shall be the responsibility of the **Named Insured** to act on behalf of all other **Insureds** with respect to the following:

1. giving and receiving notice of cancellation and/or non-renewal (as described by Endorsement hereto);
2. payment of premium;
3. receipt of return premiums;
4. acceptance of changes to this Policy; and
5. payment of Deductibles.

M. EXAMINATION OF YOUR BOOKS AND RECORDS

We may examine and audit **Your** books and records as they relate to this Policy at any time during the **Policy Period** (or any purchased **Optional Extended Reporting Period**) or up to three years after the end of the **Policy Period** (or any purchased **Optional Extended Reporting Period**).

N. TITLES

Titles of sections of and endorsements to this Policy are inserted solely for convenience of reference and shall not be deemed to limit, expand or otherwise affect the provisions to which they relate.

O. CANCELLATION

1. This Policy may be cancelled by the **Named Insured** by giving advance written notice to **Us** stating when thereafter such cancellation shall be effective.
2. If this Policy has been in effect for sixty (60) days or less, **We** may cancel this Policy by mailing to the **Named Insured** written notice of cancellation at least:
 - a. thirty (30) days before the effective date of cancellation if cancellation is for any reason not included in paragraph 2.b. below.
 - b. fifteen (15) days before the effective date of cancellation if cancellation is for any of the following reasons:
 - (1) Non-payment of premium, p _____ at a notice of cancellation on this ground shall inform the **Named Insured** HARBOR POINT
 - (2) Conviction of a crime arising out of acts increasing the hazard insured against;

- (3) Discovery of fraud or material misrepresentation in the obtaining of this policy or in the presentation of a **Claim**;
- (4) After issuance of this policy or after the last renewal date, discovery of an act or omission, or a violation of any policy condition, that substantially and materially increases the hazard insured against, and which occurred subsequent to the inception of the current **Policy Period**;
- (5) Material change in the nature or extent of the risk, occurring after the issuance or last annual renewal anniversary date of the policy that causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the policy was issued or last renewed;
- (6) Required pursuant to a determination by the New York State Superintendent of Financial Services that continuation of **Our** present premium volume would jeopardize **Our** solvency or be hazardous to the interest of **Our** policyholders, creditors, or the public;
- (7) Required pursuant to a determination by the New York State Superintendent of Financial Services that the continuation of this policy would violate, or would place **Us** in violation of any provision of the New York Insurance Code; or
- (8) Revocation or suspension of **Your** license to practice **Your** profession.

If this Policy has been in effect for more than sixty (60) days or if this Policy is a renewal or continuation of a policy issued by **Us**, **We** may cancel this Policy only for one or more of the reasons listed above in paragraph 2.b., provided a written notice of cancellation is mailed to the **Named Insured** at least sixty (60) (15) days before the effective date of cancellation if

Herkimer

3. **We** will mail notice of cancellation to the **Named Insured** by registered, certified, or other first class mail, at the address shown in the Declarations. **We** will also mail notice of cancellation to the **Named Insured's** authorized agent or broker, if any. The mailing of such notice shall be sufficient proof of notice and this Policy shall terminate at the date and hour specified in such notice.
4. If the **Named Insured** cancels this Policy, the refund may be less than pro rata. Provided, however, if the **Named Insured** cancels this Policy within 14 days of the inception of the **Policy Period** without having submitted a **Claim**, **We** shall return in full any premium amount actually paid to **Us**. In such event, the effective date of cancellation shall be deemed to be the inception date of the **Policy Period**. If **We** cancel this Policy, earned premium shall be computed pro-rata. Payment or tender of any unearned premium by **Us** shall not be a condition precedent to the effectiveness of the cancellation, but such payment shall be made as soon as practicable.

P. NOTICE OF NONRENEWAL AND CONDITIONAL RENEWAL

1. If **We** elect not to renew this Policy, **We** shall send notice as provided in paragraph 3. below, along with the reason for nonrenewal.
2. If **We** condition renewal of this Policy upon:
 - a. a change of limits;
 - b. a change in type of coverage;
 - c. a reduction of coverage;
 - d. an increased deductible;
 - e. an addition of an exclusion; or
 - f. an increased premium in excess of ten percent (10%), exclusive of any premium increase due to and commensurate with, insured value added or increased exposure units, or as a result of experience rating, loss rating, retrospective rating or audit;

We shall send notice as provided in paragraph 3. below, along with the reason for conditional renewal.

3. Notice of nonrenewal and conditional renewal will be provided as follows:
 - a. If **We** decide not to renew this Policy or to conditionally renew this Policy as provided in paragraphs 1. and 2. above, **We** shall mail or deliver written notice to the **Named Insured** at least sixty (60) days, but not more than one hundred twenty (120) days before:
 - (1) the expiration date of this Policy; or
 - (2) the anniversary date of this Policy, if this is a continuous policy.
 - b. Notice will be mailed or delivered to the **Named Insured** at the address shown in the Declarations, and to its authorized agent or broker, if any. If notice is mailed, proof of mailing shall be sufficient proof of notice.
 - c. **We** will not send notice of nonrenewal or conditional renewal if the **Named Insured** or the **Insured's** authorized agent or broker mails or delivers notice that the Policy has been replaced or is no longer desired.
4. If **We** fail to comply with any of the provisions of this subsection by sending the **Named Insured** an incomplete or late nonrenewal or conditional renewal notice prior to the expiration date of this policy, coverage will remain in effect at the same terms and conditions of this Policy and at the lower of the current rates or the prior period's rates until sixty (60) days after such notice is mailed or delivered, unless the **Named Insured**, during this sixty (60) day period, has replaced coverage or elects to cancel.

If late notice is sent on or after the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy for another **Policy Period**, at the lower of the current rates or the prior period's rates, unless the **Named Insured** during the additional policy period, has replaced the coverage or elects to cancel.

The limit of liability will be increased only in proportion to any extension of coverage **We** are required to grant if a nonrenewal or conditional renewal notice is not provided to the **Named Insured** within the time frame required by New York law.

Loss Information

Upon written notice by the **Named Insured** or its authorized agent or broker, if any, **We** shall provide the **Named Insured** with the following loss information for the period of time that the **We** have continuously provided coverage under this Policy:

- a. Information on closed **Claims**, including the date and description of any **Wrongful Act** or occurrence, and amounts of any payments;
- b. Information on open **Claims**, including the date and description of any **Wrongful Act** or occurrence, and amounts of any payments; and
- c. Information on notice of any potential **Claims**, including the date and description of such **Wrongful Acts**.
- d. **We** shall mail this loss information to the **Named Insured** or its authorized agent or broker, if any, within ten (10) days after the receipt of such request.

Q. EXTENDED REPORTING PERIODS

1. ADVICE REGARDING EXTENDED REPORTING PERIODS

We will notify the **Insured**, in writing, of the **Automatic Extended Reporting Period**, and the availability of, the premium for, and the importance of, purchasing an **Optional Extended Reporting Period** (the **Advice**). The **Advice** shall be sent to the **Insured** no earlier than the date of notification of **Termination of Coverage** nor later than sixty (60) days after the effective date of **Termination of Coverage**. If this Policy has been terminated for non-payment of premium or fraud, **We** shall not be required to provide a premium quotation for the **Optional Extended Reporting Period** unless requested by the **Insured**.

We have no obligation to send the **Advice** if **PART V. GENERAL MATTERS**, Section R. **EXCEPTIONS TO MINIMUM STATUTORY REQUIREMENTS** of this Coverage Form applies to the **Insured**.

2. AUTOMATIC EXTENDED REPORTING PERIOD

In the event of **Termination of Coverage**, **We** will provide, at no additional premium, a period of sixty (60) days, beginning on the effective date of **Termination of Coverage** during which the **Insured** shall be permitted to report to **Us** claims first made against **You** during such sixty (60) day period that are for or based upon acts committed or allegedly committed after the applicable **Retroactive Date** and prior to the effective date of **Termination of Coverage** and

otherwise covered by this Policy. Such extension of coverage shall be referred to as the **Automatic Extended Reporting Period**.

3. OPTIONAL EXTENDED REPORTING PERIOD

In the event of **Termination of Coverage**, the **Insured** shall have the right, upon payment of the applicable additional premium, to an extension of the coverage granted by this Policy for the period offered by **Us**. The periods offered by **Us** shall be one (1) year, two (2) years, three (3) years, four (4) years, five (5) years, six (6) years, and unlimited. Such extension of coverage shall be referred to as the **Optional Extended Reporting Period** and shall commence upon the effective date of **Termination of Coverage**. This **Optional Extended Reporting Period** will apply only to **Claims** first made against **You** during the **Optional Extended Reporting Period** that are for or based upon acts committed or allegedly committed after the applicable **Retroactive Date** and prior to the effective date of **Termination of Coverage** and otherwise covered by this Policy. The **Automatic Extended Reporting Period** shall be included in and shall be a part of the **Optional Extended Reporting Period**.

Provided, however, that **We** have no obligation to offer:

- a. any **Optional Extended Reporting Period** for a **Termination of Coverage** for the reasons outlined in subparagraph (2) of that definition if **PART V. GENERAL MATTERS**, Section R. **EXCEPTIONS TO MINIMUM STATUTORY REQUIREMENTS** of this Coverage Form applies to the **Insured**; or
 - b. two (2), three (3), four (4), five (5), six (6), or unlimited year **Optional Extended Reporting Period** options if **PART V. GENERAL MATTERS**, Section R. **EXCEPTIONS TO MINIMUM STATUTORY REQUIREMENTS** of this Coverage Form applies to the **Insured**.
- ### 4. TERMINATION OF COVERAGE FOR NON-PAYMENT OF PREMIUM OR FRAUD (APPLICABLE TO POLICIES IN EFFECT LESS THAN ONE (1) YEAR)

If this Policy has been terminated for non-payment of premium or fraud, **We** shall not be required to provide a premium quotation for the **Optional Extended Reporting Period** unless requested by the **Insured**.

5. NOTICE OF WRITTEN ACCEPTANCE OF THE OPTIONAL EXTENDED REPORTING PERIOD

The right to purchase the **Optional Extended Reporting Period** shall lapse unless a written notice of the election of, and full payment of additional premium for, the **Optional Extended Reporting Period** is received by **Us** within the greater of:

- a. sixty (60) days from the effective date of **Termination of Coverage**; or
- b. thirty (30) days after **We** have mailed or delivered the **Advice** as described in paragraph 1. above (if **We** are obligated to give such written **Advice**). In the event such written notice of election and the payment of the additional premium are not received by **Us** within such

c. time, there shall be no right to purchase the **Optional Extended Reporting Period** at a later date.

6. PREMIUM CHARGE FOR THE OPTIONAL EXTENDED REPORTING PERIOD

- a. The additional premium for the **Optional Extended Reporting Period** shall be based upon the rates in effect on the date the Policy was issued or last renewed. The premium for the **Optional Extended Reporting Period** shall be commensurate with the coverage provided. Upon **Termination of Coverage** on a date other than the Policy's anniversary date, the cost of the **Optional Extended Reporting Period** shall be appropriately reduced.
- b. The additional premium for the **Optional Extended Reporting Periods** shall be priced in accordance with the specifications of the New York Regulation 121 Policyholder Notices attached to this Policy.
- c. As a condition to the right to purchase the **Optional Extended Reporting Period** the total premium for this Policy must have been paid. Upon **Termination of Coverage**:
 - (1) Any return premium due to the **Insured** shall be credited toward the premium for the **Optional Extended Reporting Period** if the **Insured** elects such coverage.
 - (2) Where premium is due to **Us** for coverage during the **Claims-Made Relationship**, any monies received by **Us** from the **Insured** as payment for the **Optional Extended Reporting Period** shall first be applied to such premium owing for this Policy.

TALLGRASS WORKS

If the **Named Insured** has been placed in liquidation or bankruptcy, or permanently ceases operation, and if the **Named Insured** or its designated trustee, although entitled to, does not

purchase an **Optional Extended Reporting Period**, any other **Insured** under this Policy shall have one hundred-twenty (120) days from the effective date of the **Termination of Coverage** to purchase an **Optional Extended Reporting Period** on behalf of itself/themselves. **We** have no obligation to provide notice of this right to such **Insured**, but may charge a premium commensurate with such coverage. If such person does not pay the required additional premium when due, then the **Optional**

Extended Reporting Period for such person shall be void. Provided, however, **We** have no obligation to provide an **Optional Extended Reporting Period** to such **Insureds** if **PART V. GENERAL MATTERS, Section R. EXCEPTIONS TO MINIMUM STATUTORY REQUIREMENTS** of this Coverage Form applies to the **Insured**.

8. COVERAGE FOR INSUREDS WITH PRIOR AFFILIATION

A person employed or otherwise affiliated with the **Named Insured** and covered by the **Insured's** Policy during such affiliation shall continue to be covered under this Policy and any extended reporting period after such affiliation has ceased for such person's covered acts during such affiliation.

9. RETROACTIVE DATE ADVANCEMENT

If a **Retroactive Date** has been established, it may not be changed during the term of the **Claims-Made Relationship**, the **Automatic Extended Reporting Period** or the **Optional Extended Reporting Period**.

R. EXCEPTIONS TO MINIMUM STATUTORY REQUIREMENTS

1. Where referenced in any provision of this Coverage Form, any of the following shall qualify as applying to the **Insured** as **Exceptions to Minimum Statutory Requirements**:
 - a. the Policy contains a limit of liability of \$5,000,000 or more;
 - b. the Policy contains a **deductible** of at least \$100,000; or
 - c. the **Insured** is a **Large Commercial Insured**.
2. A **Large Commercial Insured** is defined as an insured that meets one (1) of the following:
 - a. has a net worth of at least \$7,500,000, as determined by an independent certified public accountant, as of the **Insured's** fiscal year end immediately preceding the Policy's effective date;
 - b. has gross assets exceeding \$25,000,000 and a net worth of at least \$3,000,000, as determined by an independent certified public accountant, as of the **Insured's** fiscal year end immediately preceding the Policy's effective date;
 - c. is a for-profit business entity that generates annual gross revenues exceeding \$25,000,000, and has a net worth of at least \$1,500,000, as determined by an independent certified public accountant, as of the **Insured's** fiscal year end immediately preceding the Policy's effective date;
 - d. is a for-profit business entity that has gross assets exceeding \$25,000,000 and generates annual gross revenues exceeding \$25,000,000, as determined by an independent certified public accountant, as of the **Insured's** fiscal year end immediately preceding the Policy's effective date; or
 - e. is a not-for-profit organization or public entity with an annual budget exceeding \$25,000,000 for each of its three (3) fiscal years immediately preceding the Policy's effective date.

PART VI – DEFINITIONS.

The following definitions shall apply to the words and phrases shown in **bold** text. These words and phrases will have the meaning shown when used anywhere in the Policy, even if the word or phrase is being used in the singular, plural, possessive or active or passive tense.

- A. **Application** means the signed **Application** for the Policy, whether submitted on-line, over the phone or on paper, including any attachments and other materials or statements submitted in conjunction therewith. If this Policy is a renewal or replacement of a previous policy or policies issued by **Us**, **Application** shall also include all signed **Applications** and other materials that were submitted therewith and attached thereto.
- B. **Bodily Injury** means physical injury to or sickness, disease, or death of a person, or mental injury, mental anguish, emotional distress, pain or suffering, or shock sustained by a person.
- C. **Claim** means any written demand for **Damages**.
- D. **Claim Expense** means the following that are incurred by **Us** or by **You** with **Our** prior written consent:
1. all reasonable and necessary fees, costs, and expenses (including the fees of attorneys and experts) incurred in the investigation, defense, and appeal of a **Claim**; and
 2. premiums on appeal bonds, attachment bonds or similar bond. Provided, however, **We** shall have no obligation to apply for or furnish any such bonds.

Claim Expenses shall not mean and **We** shall not be obligated to pay:

1. salaries, wages, or expenses other than **Supplemental Payments**; or
2. the defense of any criminal investigation, criminal grand jury proceeding, or criminal action.

E. **Claims-Made Relationship**

Claims-Made Relationship means that period of time between the effective date of the first claims-made Policy between **Us** and the **Insured** and the cancellation or nonrenewal of the last consecutive claims-made Policy between **Us** and the **Insured**, where there has been no gap in coverage, but does not include any period covered by the **Automatic Extended Reporting Period** or the **Optional Extended Reporting Period**.

- F. **Damages** means a monetary judgment or monetary award that **You** are legally obligated to pay (including pre-judgment interest) or a monetary settlement negotiated by **Us** with **Your** consent.

Damages shall not mean, and **We** shall not be obligated to pay:

1. fines, penalties, taxes, sanctions levied against **You**;
2. any punitive or exemplary **Damages** or that portion of any multiplied **Damages** award which exceeds the **Damage** award so multiplied;
3. the return, reduction, or restitution of **Your** fees, commissions, profits, or charges for goods provided or services rendered, including any over-charges or cost over-runs;

4. liquidated **Damages**; or
5. **Your** cost of complying with injunctive relief.

G. **Effective Control** means:

1. ownership of more than 50% of the issued and outstanding voting securities; or
2. having the right pursuant to written contract, by-laws, charter, operating agreement, or similar documents to elect, appoint, or designate a majority of the board of directors, management committee members of a partnership, or the members of the management board of a limited liability company (or equivalent management structure).

H. **Employee** means any past, present, or future:

1. **Employee** (including any part-time, seasonal or temporary **Employee** or any volunteer);
2. partner, director, officer, member or board member (or equivalent position);
3. independent contractor; or
4. leased worker;

of an **Organization**, but only in their performance of **Professional Services** on behalf of or at the direction of such **Organization**.

I. **Insured** means **You** or **Your**.

J. **Named Insured** means the individual, corporation, partnership, limited liability company, limited partnership, or other entity set forth in the Declarations.

K. **Optional Extended Reporting Period** means any applicable **Optional Extended Reporting Period** contemplated by the **OPTIONAL EXTENDED REPORTING PERIOD** Clause.

L. **Organization** means the **Named Insured** and any **Subsidiary**.

M. **Personal Injury** means injury, other than **Bodily Injury**, arising out of one of more of the following offenses:

1. false arrest, detention or imprisonment;
2. malicious prosecution;
3. wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of premises;

4. slander, libel, defamation, or disparagement of goods, products, or services; or
5. oral or written publication of material in connection with Your advertising that violates a person's right of privacy.

N. **Policy Period** means the period of time set forth in the Declarations.

O. **Pollutants** means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, and Waste. "Waste" includes materials to be recycled, reconditioned, or reclaimed.

P. **Professional Services** means only those services specified in Endorsement to this Policy as performed by or on behalf of an **Organization** for others for a fee or other compensation.

Q. **Property Damage** means physical loss of or physical damage to or destruction of any tangible property, including the loss of use thereof. For purposes of this definition, "tangible property" shall not include electronic data.

R. **Retroactive Date** means the date set forth in the Declarations.

S. **Subsidiary** means:

1. any entity of which the **Named Insured** has **Effective Control** ("Controlled Entity") on or before the **Policy Period**, either directly or indirectly through one or more Controlled Entities;
2. any entity of which the **Named Insured** forms or acquires **Effective Control** during the **Policy Period**, either directly or indirectly through one or more Controlled Entities, but only for the first 90 days after such formation or acquisition (or until the end of the **Policy Period**, whichever is earlier). Provided, however, with respect to a **Subsidiary** described in paragraph 2. of this definition, **We** shall only cover **Claims** alleging **Wrongful Acts** committed while the **Named Insured** had **Effective Control** of such **Subsidiary**, either directly or indirectly through one or more Controlled Entities.

An entity ceases to be a **Subsidiary** once the **Named Insured** no longer has **Effective Control** of such entity, either directly or indirectly through one or more Controlled Entities, and this Policy will not respond to **Claims** made against such entity thereafter.

T. **Supplemental Payments** means the reasonable expenses incurred by **You**, including loss of wages, if **You** are required by **Us** to attend arbitration proceedings or trial in the defense of a covered **Claim**.

U. **Termination of Coverage**

Termination of Coverage means, with respect to this Policy and whether done at the direction of **Us** or at the direction of the **Insured** and whether done at any time after the inception of the **Policy Period**:

1. Cancellation or nonrenewal of this Policy;
2. A decrease in the Limit of Liability, a reduction in coverage, an increased Deductible, the addition of a new exclusion that results in the removal of coverage previously provided, or any other change in coverage less favorable to the **Insured**. The **Automatic Extended Reporting Period** granted for these reasons and the **Optional Extended Reporting Period** offered for these reasons shall only apply in regard to that coverage terminated.

V. **We, Us, Our or Insurer** means the Granite Row set forth in the Declarations.

W. **Wrongful Act** means any actual or alleged breach of duty, negligent act, error, omission, or **Personal Injury** committed by **You** in the performance of **Your Professional Services**.

X. **You** or **Your** means any:

1. **Organization**;
2. **Employee**;
3. Joint venture in which an **Organization** participates pursuant to written agreement, but only for:
 - a. **Wrongful Acts** committed by such **Organization**; and
 - b. the percentage of otherwise covered **Damages** and **Claims Expenses** in proportion to such **Organization's** participation in the joint venture.

NAMED INSURED: IRONVALE AUTOMOTIVE SERVICES

War and Nuclear Energy Liability Exclusion Endorsement – State of New York

THIS ENDORSEMENT CHANGES YOUR PROFESSIONAL LIABILITY COVERAGE FORM. PLEASE READ IT CAREFULLY.

In consideration of the premium charged, it is understood and agreed that the Policy is amended as follows:

The following is added to the end of Part III. **EXCLUSIONS:**

This Policy does not apply to and **We** will have no obligation to pay any **Damages, Claim Expenses, or Supplemental Payments** for any **Claim**:

WC-A. based upon or arising out of, directly or indirectly occasioned by, happening through, or in consequence of:

1. war, including undeclared or civil war;
2. warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
3. insurrection, rebellion, revolution, usurped power, or other action taken by governmental authority in hindering or defending against any of these.

WC-B. with respect to which an **Insured** under the Policy is also an **Insured** under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an **Insured** under any such policy but for its termination upon exhaustion of its Limit of Liability.

WC-C. resulting from the hazardous properties of nuclear material and with respect to which:

1. any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof; or
2. the **Insured** is, or had this Policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

WC-D. for any loss resulting from the hazardous properties of nuclear material or arising out of the operation of a nuclear facility by any person or entity.

All other terms and conditions remain unchanged.

NAMED INSURED: IRONVALE AUTOMOTIVE SERVICES

Cyber Incidents Exclusion Endorsement

In consideration of the premium charged, it is understood and agreed that the Policy is amended as follows:

1. In Part III. **EXCLUSIONS**, Exclusion R. is deleted in its entirety and replaced with the following:

R. based upon or arising out of any actual or alleged:

1. unauthorized acquisition, access, use, or disclosure of, improper collection or retention of, or failure to protect any non-public personally identifiable information or confidential corporate information that is in **Your** care, custody, or control;
2. violation of any privacy law or consumer data protection law protecting against the use, collection, or disclosure of any information about a person or any confidential corporate information;
3. total or partial damage to, loss, corruption, deterioration, destruction, or alteration of, or the inability or impaired ability to access or manipulate any electronic data, software, electronic databases, computers, or any part of a computer system or network;
4. denial of service or delay, disruption, impairment, failure, or outage of any part of a computer system or network;
5. unauthorized or unlawful access to any electronic data or any part of a computer system or network, including through the transmission of any malicious code, such as a computer virus, worm, logic bomb, malware, spyware, Trojan horse, or other fraudulent or unauthorized computer code; or
6. threat, hoax, or demand relating to subparts 1 through 5 above.

All other terms and conditions remain unchanged.

NAMED INSURED: IRONVALE AUTOMOTIVE SERVICES

Life/Career/CLEARWATER FABRICATION

Endorsement

THIS ENDORSEMENT CHANGES YOUR PROFESSIONAL LIABILITY COVERAGE FORM. PLEASE READ IT CAREFULLY.

In consideration of the premium charged, it is understood and agreed that the Policy is amended as follows:

1. In Part VI. **DEFINITIONS**, paragraph O., "**Professional Services**," is amended to read as follows:

O. **Professional Services** means the below listed services performed for others for compensation:

Life coaching, career coaching or CLEARWATER FABRICATION .

2. Part III. **EXCLUSIONS** is amended to include the following at the end thereof:

This Policy does not apply to and **We** shall have no obligation to pay any **Damages, Claim Expenses, or Supplemental Payments** for any **Claim**:

LC-A. based upon or arising out of any actual or alleged performance or failure to perform investment advisory services, including but not limited to the following:

1. the selection of any investment manager, investment advisory, custodial or similar firm;
2. the promise or guarantee of the future performance or value of investments, or rate of return or interest;
3. the fluctuation in the value of any security;
4. any failure of investments to perform as expected or desired; or
5. acting as an investment advisor as defined in Section 202 (11) of the Investment Advisors Act of 1940.

All other terms and conditions remain unchanged.